

Court No. - 37

Case :- WRIT - C No. - 16706 of 2014

Petitioner :- Nand Kishore

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.B. Singh

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Sri Shivam Yadav, learned counsel for the contesting respondents, prays for time to obtain instructions. On his request, put up on 27.3.2014, as a fresh case.

Along with instructions Sri Yadav shall place before the Court last few bills raised against the petitioner and the demand notice if any which may have been raised.

Order Date :- 24.3.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

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Respondent :- State Of U.P. & 3 Others

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Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

Sri Shivam Yadav, learned counsel for the respondent nos.3 and 4 prays time to comply with the order dated 24.3.2014. On his request, put-up as fresh on 3.4.2014 .

Recovery from the petitioner in pursuance of the impugned recovery certificate dated 22.8.2014 shall remain till then

Order Date :- 28.3.2014

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(Attau Rahman Masoodi J.) (Vineet Saran J.)

Court No. - 37

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Petitioner :- Nand Kishore

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.B. Singh

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

On the request made by Sri Shivam Yadav, learned counsel for the contesting respondent, put up this matter on 10.04.2014 as fresh.

Interim order to the effect that the recovery from the petitioner in pursuance of the recovery certificate dated 22.08.2013 shall remain stayed till the next date of listing..

Order Date :- 3.4.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

Court No. - 39

Case :- WRIT - C No. - 16706 of 2014

Petitioner :- Nand Kishore

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.B. Singh

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri J.B. Singh, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Shivam Yadav, learned counsel appearing on behalf of respondents no. 3 and 4.

This writ petition is directed against the recovery citation dated 22.08.213 whereby the electricity dues for domestic electricity connection No. 404008 to the tune of Rs.35321/- are sought to be recovered from the petitioner as arrears of land revenue.

Learned counsel for the petitioner has preliminary stated that no electricity bills were ever given to the petitioner after connection was taken in the year 1998 and further that wooden poles through which the electricity connection was provided to the petitioner have long ago fallen and there is no supply of electricity to the petitioner.

Learned counsel for the respondents have referred to annexure-4 to the writ petition to state that the petitioner has already filed a suit No. 394 of 2013, Nand Kishore vs. Madhyanchal Vidhyut Vitran Nigam Limited and others, claiming relief of injunction restraining the defendants from realizing any electricity dues in an illegal manner. According to them, since the petitioner having availed remedy by filing a suit with respect to the same connection, this petition cannot be maintained against the citation issued for recovery of electricity dues as arrears of land revenue.

We have considered the submission of learned counsel for the parties and find that where there is dispute with respect to assessment or the bills itself, remedy has been provided under Uttar Pradesh Electricity Supply Code, 2005 and where there is dispute regarding the citation issued under the provisions of the U.P.Z.A. & L.R. Act, a suit under Section 287-A is contemplated under that Act. As such, when the petitioner has already filed a suit

with claiming an injunction against the respondents, it would be more appropriate for him to assail the impugned citation in accordance with the provisions of Section 287-A of the U.P.Z.A. & L.R. Act before the competent Court. As such, in this writ petition, only by exchange of affidavits, this Court will not be in a position to adjudicate the highly factual dispute between the parties regarding the amount due to be recovered or whether there was any electricity supply available to the petitioner after 1998. Therefore, the relief claimed in this writ petition against impugned citation cannot be granted.

However, the writ petition is finally disposed of with liberty as indicated above.

No order is passed as to costs.

Order Date :- 10.4.2014

Mukesh Kr.